

Amazing

Fact and Science Fiction

stories

JANUARY

35¢

MAC I

PAWN OF THE BLACK FLEET
A New Novel by Mark Clifton

TOWERS OF TITAN
by Ben Bova

THE MARS SNOOPER



Amazing

Fact and Science Fiction stories

JANUARY

35¢

MAC I

PAWN OF THE BLACK FLEET
A New Novel by Mark Clifton

TOWERS OF TITAN
by Ben Bova

THE MARS SNOOPER



The Project Gutenberg eBook of The Akkra case

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Akkra case

Author: Miriam Allen De Ford

Illustrator: Dan Adkins

Release date: November 22, 2023 [eBook #72197]

Language: English

Original publication: United States: Ziff-Davis Publishing Company, 1961

Other information and formats: www.gutenberg.org/ebooks/72197

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE AKKRA
CASE ***

Miriam de Ford has given a good deal of thought to crime and criminology of other times and spaces (see Editorial). Now she turns her talents to constructing a "true crime" of the future—and its solution. Herewith, then, a criminologist's lecture-report on:

THE AKKRA CASE

By MIRIAM ALLEN de FORD

Illustrated by ADKINS

**[Transcriber's Note: This etext was produced from
Amazing Stories January 1962.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**



Deliberate murder being so very rare a crime in our society, an account of any instance of it must attract the attention not only of criminologists but also of the general public. Very many of my auditors must remember the Akkra case well, since it occurred only last year. This, however, is the first attempt to set forth the bizarre circumstances hitherto known only to the authorities and to a few specialists.

On February 30 last, the body of a young girl was found under the Central Park mobilway in Newyork I. She had been struck on the head with some heavy object which had fractured her skull, and her auburn hair was matted

with congealed blood. Two boys illegally trespassing on one of the old dirt roads in the park itself stumbled upon the corpse. She was fully dressed, but barefoot, with her socsandals lying beside her. An autopsy showed only one unusual thing—she was a virgin, though she was fully mature.

Two hundred years ago, say, this would have been a case for the homicide branch of the city police. Now, of course, there are no city police, all local law enforcement being in the hands of the Federal government, with higher supervision and appeal to the Interpol; and since there has been no reported murder (except in Africa and China, where this crime has not yet been entirely eradicated) for at least 20 years, Fedpol naturally has no specialists in homicide. Investigation therefore was up to the General Branch in Newyork Complex I.

The murderer had stupidly broken off the welded serial number disc from her wristlet—stupidly, because of course everybody's fingerprints and retinal pattern are on file with Interpol from birth. It was soon discovered that the victim was one Madolin Akkra, born in Newyork I of mixed Irish, Siamese, and Swedish descent, aged 18 years and seven months. Since it is against the law for any minor (under 25) to be gainfully employed, and there was no record of any exemption-permit, she had necessarily to be a student. She was found to be studying spaceship maintenance at Upper Newyork Combined Technicum.

People who deride Fedpol and call it a useless anachronism don't know what they are talking about. It is true that in our society criminal tendencies are understood to be a disease, amenable to treatment, not a free-will demonstration of anti-social proclivities. But it is also true that every member of Fedpol, down to the merest rookie policeman, is a trained specialist in some field, and that most of its officers are graduate psychiatrists. As soon as Madolin Akkra's identity was determined, it was easy to find out everything about her.

The circumstances surrounding her in life were sufficiently odd in themselves. Her mother was dead, but she lived with her own father and full younger sister in a small (only 20 stories and 80 living-units) co-operative

apartment house in the old district formerly called Westchester, once an "exclusive" settlement but now considerably run down, and populated for the most part by low-income families. Few of the residents had more than one helicopter per family, and many of them had to commute to their jobs or schools by public copter. The building where the Akkras lived was shabby, its chrome and plastic well worn, and showed the effects of a negligent local upkeep system. The Akkras even prepared and ate some of their meals in their own quarters—an almost unheard-of anachronism.

The father had served his 20 years of productive labor from 25 to 45, and the whole family was therefore supported by public funds of one sort or another. When the Fedpol officers commenced their investigation by interviewing this man, they found him one of the worst social throwbacks discovered in many years—doubtless a prime reason for the bizarre misfortune which had overtaken his misguided daughter. To begin with, the investigators wanted to know, why had he not reported his daughter missing? To this, Pol Akkra made the astonishing reply that the girl was old enough to know her own business, and that he had never asked any questions as to what she did! Everyone knows it is every adult's responsibility to report any deviation by the young more serious than the mischievous trespassing by the boys who had found Madolin Akkra's body, and who at least had gone to Fedpol at once. The officers could get no lead whatever from the girl's father.

To find the murderer, it was of first importance to establish the background of this strange case. Access to the park is difficult—has been difficult ever since, more than a century ago, the area became a hunting-ground for thieves and hoodlums, and was transformed into a cultivated forest and garden preserved for aesthetic reasons, and to be viewed only from the mobilways above. (The boys who found the body are, of course, proof that the sealing-off of the park is not entirely effective—but surely only a daring and agile child could insinuate himself under the thorn-set hedges surrounding the park, or swing down to the tree-tops from the structure above.)

If the victim had been killed elsewhere, how was her body carried to the spot where it was found? Both murderer and corpse would have had to penetrate unobserved into an almost impenetrable area. Could the body have been thrown from above? But if so, how could the remains of a full-

grown girl have been transported from either a ground car or a copter on to the crowded mobilway, brightly lighted all night long? She must have gone there alive, either under duress or of her own accord.

The first and most natural question, to Fedpol, was: who did have access to the park? The answer was, the gardeners. But the gardeners were out: they were all robots, even their supervisor. No robot is able to harm a human being. Moreover, no robot could have brought the victim in from outside if she had been killed elsewhere. The gardeners never leave the park, and they would repel any strange robot from elsewhere who tried to enter it. And one could hardly imagine a sane human being who would go to the park for a rendezvous with a robot!

It was Madolin's little sister, Margret, who interrupted the futile interrogation of the surly and resistant Pol Akkra and provided the first clue. She caught the eye of the investigating officer, Inspector Dugal Kazazian, and quietly went into the next room, where Kazazian followed her after posting his assistant with the father.

"I promised Madolin I would never tell on her," she whispered, "but now she's—now it doesn't matter." She had loved her sister; her eyes were puffy from weeping. "She—she'd been going to Naturist get-togethers."

Kazazian almost groaned aloud. He might have known—this was the first time they had been linked with murder, but it seemed to him that in almost every other affair he had investigated for the past few years, the subversive Naturists somehow had crept in. And if he had reflected, he would have suspected them already, since there seems to be no school or college which does not harbor an underground branch of these criminal lunatics.

I need hardly explain to my auditors who and what the Naturists are. But to keep the record complete, let me say briefly that this pernicious worldwide conspiracy, founded 50 years ago by the notorious Ali Chaim Pertinuzzi, is engaged in an organized campaign to tear down all the marvelous technical achievements of our civilization. It pretends to believe that we should eat "natural" foods and wear "natural" textiles instead of synthetics, walk instead of ride, teach children the obsolete art of reading (reading what?—

the antique books preserved in museums?), make our own music, painting, and sculpture instead of enjoying the exquisite products of perfected machines, open up all parks and the few remaining rural preserves to campers, hunters and fishers (if any specimens worth hunting can be found outside zoos), and what they call "hikers"—in a word, go back to the confused, reactionary world of our ancestors. From this hodgepodge of "principles" it is a natural transition to political and economic subversion. No wonder that the information that Madolin Akkra had been corrupted by this vile outfit sent a chill down Inspector Kazazian's spine.

It explained a great deal, however. The Naturists profess to oppose our healthy system of sexual experimentation, and Madolin had been a virgin. The weird family situation, and her father's attitude both toward her and toward the Fedpol, aroused suspicion that he too was affiliated with the Naturists, not simply that Madolin had flirted with the outer edges of the treasonable organization, as a "fellow-seeker," without her father's knowledge.

Suppose the girl, fundamentally decent and ethically-minded, had revolted against the false doctrine and threatened to betray its advocates? Then she might have been killed to silence her—and what more likely than that, as a piece of brazen defiance, her murdered corpse should have been deposited in the only bit of "natural" ground still remaining in the Newyork area?

But how, and by whom?

The first step, of course, was to fling a dragnet around all known or suspected Naturists in the district. In a series of flying raids they were rounded up; and since there no longer exist those depositories for offenders formerly known as prisons, they were kept incommunicado in the psychiatric wards of the various hospitals. For good measure, Pol Akkra was included. Margret, at 13, was old enough to take care of herself.

Next, all Madolin's classmates at the Technicum, the operators of her teach-communicators, and members of other classes with whom it was learned she had been on familiar terms, were subjected to an intensive electronic questioning. (Several of these were themselves discovered to be tainted with Naturism, and were interned with the rest.) One of the tenets of Naturism is a return to the outworn system of monogamy, and the questioning was directed particularly to the possibility that Madolin had formed half of one of the notorious Naturist "steady couples," who often associate without or before actual mating. But day after day the investigators came up with not the slightest usable lead.

Please do not think I am underrating Fedpol. Nothing could have been more thorough than the investigation they undertook. But this turned out in the end to be a case which by its very nature obfuscated the normal methods of criminological science. Fedpol itself has acknowledged this, by its formation in recent months of the Affiliated Assistance Corps, made up of amateurs who volunteer for the detection of what are now called Class X crimes—those so far off the beaten path that professionals are helpless before them.

For it was an amateur who solved Madolin Akkra's murder—her own little sister. When Margret Akkra reaches the working age of 25 she will be offered a paid post as Newyork Area Co-ordinator of the AAC.

Left alone by her father's internment, Margret began to devote her whole time out of school hours to the pursuit of the person or persons who had killed her sister. She had told Kazazian all she actually knew; but that was only her starting-point. Though she herself, as she had told the Inspector, believed that the murder might be traced to Madolin's connection with the Naturist (and though she probably at least suspected her father to be involved with them also), she did not confine herself to that theory, as the Fedpol, with its scientific training, was obliged to do.

Concealed under a false floor in her father's bedroom—mute evidence of his Naturist affiliation—she found a cache of printed books—heirlooms which should long ago have been presented to a museum for consultation

by scholars only. They dated back to the 20th century, and were of the variety then known as "mystery stories." Margret of course could not read them. But she remembered now, with revulsion, how, when she and Madolin were small children, their mother had sometimes (with windows closed and the videophone turned off) amused them by telling them ancient myths and legends that by their very nature Margret now realized must have come from these contraband books.

Unlike her father and her sister, and apparently her mother as well, Margret Akkra had remained a wholesome product of a civilized education. She had nothing but horror and contempt for the subversive activities in the midst of which, she knew now, she had grown up. The very fact, which became plain to her for the first time, that her parents had lived together, without changing partners, until her mother had died, was evidence enough of their aberration.

But, stricken to the heart as the poor girl was, she could not cease to love those she had always loved, or to be diverted from her resolution to solve her sister's murder. Shudder as she might at the memory of those subversive books, she yet felt they might inadvertently serve to assist her.

It was easy to persuade the school authorities that her shock and distress over Madolin's death had slowed up her conscious mind, and to get herself assigned to a few sessions with the electronic memory stimulator. It took only two or three to bring back in detail the suppressed memories, and to enable her to extrapolate from them.

One feature of these so-called "mysteries" that came back to her struck Margret with especial force—the frequent assertion that murderers always return to the scene of their crime. She decided that she too must plant herself at the spot where her sister's body had been found, and lie in wait for the returning killer.

It would be useless to try to obtain official permission, but she was only 13, as lean and agile as any other child, and if boys could evade the hedges and the robot gardeners, so could she. The audiovids had displayed plenty of pictures of the exact scene, and Margret knew where to find it. But an

inspection of the hedges showed her that it would be easier for her to get in from above, at night—a likelier time also for her prey.

She located a place where the trees grew almost to the mobilway and shaded a section of it between the lamps. Perched on the stand-pave and watching for a pause in the stream of gliders-by, she dropped lightly into a tree and climbed down to the park beneath. Hiding from the gardeners, she made her way to the bushes where the boys had discovered Madolin.

For nearly a week, fortified by Sleepnomer pills, Margret spent every moment after dark in this hideaway. It was a long, nerve-wracking vigil: the close contact with leaves and grass, the sound of the wind in the trees, the unaccustomed darkness away from the lights above, the frightening approach of wild squirrels and rabbits and even birds, the necessity to stay concealed from passing robots, kept her on edge. But stubbornly she persisted. And at last she was rewarded.

It was not late—only about 20 o'clock—when she heard a scramble and bump not far from her own means of access to the park. It was not the first time since her watch began that she had heard other adventurers, invariably small and rather scared boys who dared one another to walk for a few feet along the dirt paths, then in a panic rushed back the way they had come. But this time the steps came directly toward her—human footsteps, not the shuffle of a robot.

Hidden behind a bush, Margret saw them approach—two boys of about her own age. And then, with a sickening lurch of her heart, she recognized them. She had seen them, acclaimed as heroes, on the videoscreen. They were the two who had found Madolin. She could hear every word they said.

"Come on," one of them urged in a hoarse whisper. "There's nothing to be afraid of."

"Yes, there is," the other objected. "Ever since then, they've got the gardeners wired to describe and report anybody they find inside the park."

"I don't care. We've *got* to find it. Give me the beamer."

Margret crouched behind the thickest part of the shrubbery, her infra-red camera at the alert. The tape-attachment was already activated.

The second boy still held back. "I told you then," he muttered, "that we shouldn't have reported it at all. We should have got out of here and never said a word to anyone."

"We couldn't," the first boy said, shocked. "It would have been anti-social. Haven't you ever learned anything in school?"

"Well, it's anti-social to kill somebody, too, isn't it?"

Margret pressed the button on the camera. Enlarged enough, even the identification discs on the boys' wristlets would show.

"How could we guess there was a human being there, except us? What was she doing here, anyway? Come on, Harri, we've got to find that thing. It's taken us long enough to get a chance to sneak in here."

"Maybe they've found it already," said Harri fearfully.

"No, they haven't; if they had, they'd have taken us in as soon as they dusted the fingerprints."

"All right, it's not anywhere on the path. Put the beamer on the ground where it will shine in front of us, and let's get down on our stomachs and hunt underneath the bushes."

Grabbing her camera, Margret jumped to her feet and dashed past the startled boys. She heard a scream—that would be Harri—and then their feet pounding after her. But she had a head start, and her eyes were more accustomed to the dark than theirs could be. She reached a tree, shinnied up it, jumped from one of its limbs to another on a higher tree beneath the mobilway, chinned herself up, and made her way out safely.

She went straight to Fedpol headquarters and asked for Inspector Kazazian.

The frightened boys were picked up at once. They were brought into headquarters, where they had been praised and thanked before, and as soon as they saw the pictures and heard the tape-recording they confessed everything.

That night, they said, they were being initiated into one of those atavistic fraternities which it seems impossible for the young to outgrow or the

authorities to suppress. As part of their ordeal, they had been required to sneak into Central Park and to bring back as proof of their success a captured robot gardener. Between them they had decided that the only way they could ever get their booty would be to disassemble the robot, for though it could not injure them, if they took hold of it, its communication-valve would blow and the noise would bring others immediately; so they had taken along what seemed to them a practical weapon—a glass brick pried out of the back of a locker in the school gym. Hurling by a strong and practiced young arm, it could de-activate the robot's headpiece.

When, as they waited in the darkness for a gardener to appear, they saw a figure moving about in the shrubbery bordering the path, one of them—neither would say which one it was—let fly. To their horror, instead of the clang of heavy glass against metal, they heard a muffled thud as the brick struck flesh and bone. They started to run away. But after a few paces they forced themselves to return.

It was a girl, and the blow had knocked her flat. Her head was bleeding badly and she was moaning. Terrified, they knelt beside her. She gasped once and lay still. One of the boys laid a trembling hand on her breast, the other seized her wrist. There was no heart-beat and there was no pulse. On an impulse, the boy holding her wrist wrenched away her identification disc.

Panic seized them, and they dashed away, utterly forgetting the brick, which at their first discovery one of them had had the foresight to kick farther into the shrubbery, out of view. Sick and shaking, they made their way out of the park and separated. The boy who had the disc threw it into the nearest sewer-grating.

The next day, after school, they met again and talked it over. Finally they decided they must go to Fedpol and report; but to protect themselves they would say only that they had found a dead body.

Day after day, they kept seeing and hearing about the case on the videaud, and pledged each other to silence. Then suddenly one of the boys had a horrible thought—they had forgotten that the brick would show their

fingerprints!... They had come desperately to search for it when Margret overheard them. Kazazian's men found it without any difficulty; it had been just out of the gardeners' regular track.

In view of the accidental nature of the whole affair, and the boys' full confession, they got off easy. They were sentenced to only five years' confinement in a psychiatric retraining school.

The suspects against whom nothing could be proved were released and kept under surveillance. Pol Akkra, and all the proved Naturists, were sentenced to prefrontal lobotomies. Margret Akkra, in return for her help in solving the mystery, secured permission to take her father home with her. A purged and docile man, he was quite capable of the routine duties of housekeeping.

The killing of Madolin Akkra was solved. But one question remained: how and why had she been in Central Park at all?

The answer, when it came, was surprising and embarrassingly simple. And this is the part that has never been told before.

Pol Akkra, a mere simulacrum of the man he had been, no longer knew his living daughter or remembered his dead one. But in the recesses of his invaded brain some faint vestiges of the past lingered, and occasionally and unexpectedly swam up to his dreamlike consciousness.

One day he said suddenly: "Didn't I once know a girl named Madolin?"

"Yes, father," Margret answered gently, tears in her eyes.

"Funny about her." He laughed his ghastly Zombie chuckle. "I *told* her that was a foolish idea, even if it was good Nat—Nat-something theory."

"What idea was that?"

"I—I've forgotten," he said vaguely. Then he brightened. "Oh, yes, I remember. Stand barefoot in fresh soil for an hour in the light of the full moon and you'll never catch cold again.

"She was subject to colds, I think." (About the only disease left we have as yet no cure for.) He sighed. "I wonder if she ever tried it."

THE END

*** END OF THE PROJECT GUTENBERG EBOOK THE AKKRA
CASE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.